THE STATE OF SOUTH CAROLINA
In The Supreme Court

APPEAL FROM CALHOUN COUNTY
Honorable Diane S. Goodstein, Circuit Court Judge
Case No. 2025-CP-09-00195

Appellate Case No. 2025-001777

Anne Crook ..... Respondent

v.

South Carolina Election Commission ..... Appellant

And

Henry McMaster, in his official capacity as Governor of the State of South Carolina ..... Putative Intervenor-Appellant

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MOTION TO DISMISS APPEAL AND WRIT

Respondent hereby states and moves as follows pursuant to Rule 240, SCACR:

1. The tenth day from the issuance of the TRO has arrived and by rule it will dissolve as a matter of law. Rule 65, SCRCP. Therefore, the appeal of Appellant and Motion to Supersede of Putative Intervenor-Appellant are moot.

2. The parties to the action below reached and executed an agreement on Tuesday to preserve the status quo and allow Appellant negotiate with the US Department of Justice for a Memorandum of Understanding. Attached is a copy of the Joint Motion of the parties submitted to Judge Goodstein.

3. The Putative Intervenor-Appellant is not a party to this Agreement, not yet a party to this case, and not a necessary party in any event.

Therefore, Respondent moves this Court to remand the case to the lower court for approval of the Joint Motion.

Dated: September 11, 2025

/s/ C. Bradley Hutto
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